

26STCV02001 26STCV02001

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Case Number: 26STCV02001 Hearing Date: September 28, 2026 Dept: O

Tentative Ruling

DEFENDANTS'

PETITION TO COMPEL PLAINTIFF TRACI BLACKMON- BHAGAT TO ARBITRATE AND TO STAY ACTION PENDING ARBITRATION is GRANTED; the case is STAYED such that the court need to address the other motions. The court requests Defendant file a proposed order.

Background

This is an employment case regarding various plaintiffs.

On

January 20, 2026, Plaintiffs TRACI BLACKMON-BHAGAT; TAMRELLE COLLINS; PALOMAR; and CHERYL WILSON filed suit against

Defendants HASA, INC., a California corporation; CHRIS BRINK; GARY BARANCIK; ALMA BUNCH for:

1. VIOLATION OF UNRUH ACT (CIVIL CODE §51)
2. VIOLATION OF BANE ACT (CIVIL CODE § 52.1)
3. 4. GENDER VIOLENCE (CIVIL CODE§ 52.4) SEXUAL HARASSMENT (CIVIL CODE § 51.9)
5. SEXUAL ASSAULT

6. SEXUAL BATTERY (CIVIL CODE §1708.5)

7. UNFAIR BUSINESS PRACTICES (BUSINESS & PROFESSIONS
CODE § 17200)

8. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

9. CONSTRUCTIVE FRAUD (CIVIL CODE §1573)

10. NEGLIGENCE

11. NEGLIGENCE PER SE - CONDUCT IN
VIOLATION OF MANDATED REPORTING LAWS

12. NEGLIGENT HIRING, TRAINING, SUPERVISION, AND
RETENTION;

13. NEGLIGENT FAILURE TO WARN, TRAIN OR EDUCATE

14. ASSAULT

15. BATTERY

16. PREMISES LIABILITY

17. INTENTIONAL MISREPRESENTATION

18. VICARIOUS LIABILITY

On June

4, 2026, the instant petition/motion was filed.

On June 25, 2026, an opposition was
filed.

On August 4, 2026, a memorandum of
points and authorities was filed.

On

August 19, 2026, a reply was filed.

On

August 26, 2026, the court held its hearing on the matter.

Discussion

As

stated in the court's posted ruling and during the hearing, the court continued the matter to afford Plaintiffs an opportunity to file a supplemental brief in light that the memorandum of points and authorities was filed after the notice of the motion was filed. To date, as of September 22, 2026, no such filing has been made by Plaintiffs, and Defendant also acknowledges that much. (See 9/21/26 Reply 2: 1-3 ["The Court continued the original August 26, 2026 hearing specifically to afford Plaintiff Traci Blackmon-Bhagat an opportunity to file a further opposition to Defendants' Petition to compel arbitration. Plaintiff declined to do so."].)

As

indicated in the court's 8/26/26 ruling, there was an already pending arbitration before AAA, Case No. 01-26-0003-3029 such that the court was uncertain as to what there is for this court to compel. (During the hearing, Plaintiffs' counsel represented that there is no arbitration case; no supplemental brief, despite the opportunity, was filed to explain how so.) As further explained by Defendant, Emily R. Boyle was appointed as the arbitrator in Traci Blackmon-Bhagat v. Hasa, Inc., AAA Case No. 01-26- 0003-3029. [McLoughlin Decl. ¶ 5; Ex. 6]. In the AAA case, Plaintiff not asked Arbitrator Boyle to halt the arbitration, has not argued the AAA proceeding should not move forward, and has not raised any objection to the arbitrator's jurisdiction or regarding the existence, scope, or validity of the Agreement. [McLoughlin Supp. Decl. ¶ 3]. Instead, as explained by Defendant, "Plaintiff and her counsel have refused to participate in the ongoing arbitration proceeding" hence why "Hasa seeks relief from the Court – an order staying this civil action in its entirety and an order directing Plaintiff to arbitrate her claims in this action in the pending AAA proceeding." (Supp. Brief p. 2.)

The

court does so. The only argument raised in the very brief opposition is that Plaintiffs, individually and collectively, are excluded from being compelled to participate in arbitration because the Complaint consists of claims of sexual

assault, sexual battery, sexual discrimination, and sexual harassment, pursuant to the Ending Forced Arbitration of Sexual Assault and Harassment Act. However, as argued in reply and no supplemental brief was filed despite given the opportunity to do so, that argument fails for two reasons.

First,

Section 402(a) is a provision of the Federal Arbitration Act ("FAA"). It applies only to cases and arbitration motions controlled by the FAA. But Defendants do not move to compel arbitration under the FAA. Instead, Defendants seek enforcement of Plaintiff's Agreement exclusively under the California Arbitration Act. Second, even if the FAA applied, Plaintiff Blackmon-Bhagat does not plead any sexual-harassment or sexual-assault, which is the threshold requirement to invoke section 402(a). Plaintiff's individualized allegations concern regulatory complaints, retaliation, termination, and a nonsexual confrontation with Human Resources; the references to sexual harassment are directed at other co-workers and do not supply any facts alleging that Plaintiff Blackmon-Bhagat herself was subjected to any sexually harassing conduct.

To the extent that Plaintiff Blackmon-Bhagat may argue she was subject to sexual harassing conduct (because she actually doesn't argue that), there is one sentence in her declaration at paragraph 3 that states the following: "In approximately February to March 2024, I, Gary Barancik (Director of EHS), Edgar Solorzano (EHS Manager), and Lori Ann (Quality Supervisor), were at the Saugus facility. After co-worker Lori Ann left the office, Gary Barancik stated, "Mr. Brink is going to have an oreo sex sandwich with you and Lori Ann."

Defendant filed evidentiary objections to this declaration on 9/21 and the court sustains all. Even assuming that the court accepts Plaintiff's out-of-court statements regarding the alleged conduct (i.e., exception to hearsay/statement of party opponent), Plaintiff has not explained, again despite the opportunity file supplemental briefing, how such allegations satisfy the severe or pervasive standard necessary to constitute actionable sexual harassment under California law. (See e.g., *Lyle v. Warner Bros. Tel. Prod.* (2006) 38 Cal. 4th 264, 282 ["For instance, we agree " with the United States Supreme Court that, to prevail, an employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment

and create a work environment that qualifies as hostile or abusive to employees because of their sex."], *italics original*); Hughes v. Pair (2009) 46 Cal.4th 1035,

1042-1043 ["Taken into account must be the surrounding circumstances, such as the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance. []

Thus, simple teasing, offhand comments, and isolated incidents (unless extremely serious) will not amount to discriminatory changes in employment conditions. Thus,

simple teasing, offhand comments, and isolated incidents (unless extremely serious) will not amount to discriminatory changes' in employment conditions."], internal citations omitted.)

Thus,

the court rejects Plaintiff's attempt to invoke section 402 of the FAAA.

Accordingly,

the court grants Defendants' petition, compels Plaintiff to submit her claims to the pending AAA arbitration and, as requested by Hasa throughout its moving papers, stays further proceedings in this action.

Conclusion

Based upon

the foregoing, the motion is granted.